

extent Petitioner disagrees with this interpretation, he shall file an Amended Petition.

- (5) The Petition states that all heirs at law have waived bond. (Pet., § 3(e)(3).) However, there are no bond waiver forms (DE-142/DE-111) in the file. Petitioner is directed to submit bond waiver forms by all heirs. Otherwise, the proper amount of bond to be imposed is \$420,000. (Prob. Code, § 10453.)
- (6) There is no proposed order (DE-140) or proposed letters (DE-150) on file.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Proper publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing on the Petition must be no less than 15 days and no more than 30 days after the Petition is filed. (Prob. C. §8003(a).) For this reason, if no proper publication of the hearing was made, the Court is without jurisdiction to hear the Petition and cannot continue the hearing to permit Petitioner to cure the defect.

.....

Estate of Allen Paul Stanton

26PR000120

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The matter is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A to allow Petitioner to remedy the following issue. The Petition indicates that bond is not required because all beneficiaries waive bond. (See Pet., at §§ 2, subd. (d)(1) and 3, subd. (e)(3).) There is, however, no waiver on file for identified heir JoAnn Wanek.

.....

Estate of Lydia Fajardo Santos

26PR000142

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no proof of publication on file. If a proper proof of publication is filed prior to the hearing, the petition will be GRANTED, Richard S. Thomas will be appointed as probate referee, and the matter will be set for a Status Hearing Re: Final Distribution on August 04, 2027, at 8:30 a.m. in Dept. A. Petitioner will need to submit Proposed letters (DE-150) for the Court's signature.

However, if no publication has been made, the Court will be forced to DENY the Petition without prejudice. Publication is required to invest the Court with subject matter jurisdiction over the Estate. (Prob. C. § 8005, subd. (b)(1)(C).) Therefore, the Petition may not be heard unless and until an affidavit of publication is on file. (Prob. C. § 8124.) The first of the three required publications must be at least 15 days before the hearing. (Prob. C. §8121(a).) Finally, the hearing